Brazoria County District Court

Cause No. 2024-CV-0038

James Castillo, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of James Castillo

Date:	April 25, 2024
Location:	Offices of Marshall & Dominguez LLP
Examining attorney:	Marilyn Fox, Ashford & Lyle LLP
Defending attorney:	Kyle Sanders, Marshall & Dominguez LLP

Q: Please state your full name for the record.

A: I'd rather not give my full name on this one, but you can refer to me as the plaintiff.

Q: Fair enough. Where were you on the day of the collision?

A: I was driving through Pearland, Texas, heading to an appointment. I was turning left at an intersection with a green light, or at least I believed it was green when I started the turn.

Q: What happneed as you turned?

A: A pickup coming the other way didn't stop. It came through the intersection and hit the driver's side of my car. The impact spun my vehicle partway around and I felt my head snap forward and then back against the headrest.

Q: Did you get out of the vehicle at the scene?

A: I did, though I didn't feel steady. My neck was stiff almost immediately, and I had a headache that got worse over the next several hours.

Q: Did you seek medical care?

A: Yes. I was taken by ambulance to the emergency room. They examined my neck and back, took X-rays, and diagnosed whiplash. They gave me a cervical collar and pain medication and told me to follow up with my primary doctor.

Q: Who has treated you since then?

A: My primary care physician, and I started physical therapy about a week and a half after the accident. I attend sessions two or three times a week. My doctor also referred me to a specialist for the headaches.

Q: How has the injury affected your daily life?

A: Quite a lot. I used to coach my nephew's soccer team on weekends, and I've had to step away from that. Lifting groceries is hard, and I can't turn my head to check blind spots without pain, which makes driving stressful. I've also had trouble sleeping beacuse I can't find a comfortable position.

Q: Have you missed work?

A: I've missed several days and have been on modified duties for part of the time. My job involves a lot of sitting at a desk and some lifting, so the restrictions have been difficult.

Q: Before this accident, did you have any problems with your neck or back?

A: No, not that I can recall. I was active and didn't have any ongoing treatment for my neck.

Q: Are your symptoms getting better?

A: Some days are better than others. The therapy has helped with the stiffness, but the headaches and the pain when I turn my head are still with me.